IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NORTH CAROLINA

LAURA ELIZABETH BELL, on behalf of herself and all others similarly situated, Plaintiff, v. CRAFT REVOLUTION, LLC d/b/a ARTISANAL BREWING VENTURES; ARTISANAL BREWING VENTURES CHARLOTTE, LLC; and DOE DEFENDANTS 1-10. Defendants.	Civil Action No.: **CLASS AND COLLECTIVE ACTION COMPLAINT** **JURY TRIAL DEMANDED**

Plaintiff Laura Elizabeth Bell ("Plaintiff"), on behalf of herself and all others similarly situated, alleges as follows:

INTRODUCTION

1. This is a class and collective action brought on behalf of "Tipped Employees" who work or have worked at any of the taprooms ("Taprooms") that are owned, operated and/or otherwise managed or controlled by Defendants Craft Revolution, LLC d/b/a Artisanal Brewing Ventures and Artisanal Brewing Ventures Charlotte, LLC (together "ABV," the "Company," or "Defendant"), and have been subject to the unlawful practices detailed herein.

2. Defendants operate Taprooms under the following brands: Southern Tier Brewing Company, Victory Brewing Company, Bold Rock Hard Cider, Sixpoint Brewery, and Southern Tier Distilling Company.

3. According to Defendants' website, ABV ". . . has operations in Lakewood, Buffalo, Cleveland, Pittsburgh, metro Philadelphia, Brooklyn, Asheville, Mills River, and Nellysford." *See https://artbrewventures.com/about/* (last visited December 5, 2023).

persons composed of:

4. Although ABV promotes the "independence" of the individual brands, ABV

functions as a single integrated enterprise – a taproom that serves creative craft beers and, in the

case of Southern Tier Distillery, craft liquors.

All current and former Tipped Employees who have worked for Defendants in the Commonwealth of Pennsylvania during the statutory period covered by this Complaint (the "PA Class").

5. Defendants maintain a single website that incorporates each of the brands'

Taprooms.

26. The Collective Class and the PA Class are hereafter collectively referred to as the "Classes."

SUMMARY OF CLAIMS

27. Plaintiff alleges on behalf of the Collective Class that they are: (i) entitled to unpaid minimum wages from Defendants for hours worked for which Defendants failed to comply

6. Plaintiff brings this action as a collective action to recover unpaid wages, pursuant

with the notice provisions of the tip credit and pay the mandatory minimum wage, as required by

to the Fair Labor Standards Act of 1938, as amended, 29 U.S.C. § 201 et seq. ("FLSA" or the

law; (ii) entitled to unpaid OTC work; and (iii) entitled to liquidated damages pursuant to the "Act").

FLSA, 29 U.S.C. § 201 *et seq.*

7. Plaintiff brings this suit on behalf of the following similarly situated persons:

28. Plaintiff alleges on behalf of the PA Class that Defendants violated the PMWA by

All current and former Tipped Employees who have worked for Defendants in the United

failing to comply with the tip credit provisions, as required by law, and consequently failing to pay

States within the statutory period covered by this Complaint and elect to opt-in to this action

them the appropriate minimum wages for all hours worked. In addition, Defendants also violated

pursuant to the FLSA, 29 U.S.C. § 216(b) (the "Collective Class").

the PMWA by failing to pay the PA Class members the full minimum wage for time spent

8. Plaintiff also brings this action as a state-wide class action to recover unpaid wages

performing non-tip generating work. Finally, Plaintiff alleges on behalf of the PA Class that

pursuant to PA State Laws.

Defendants violated the WPCL by failing to pay Plaintiff and members of the PA Class all wages

PARTIES

due and owing (the minimum wage) as they had agreed upon.

9. Plaintiff Laura Elizabeth Bell ("Plaintiff" or "Bell") is a resident of the

PARTIES

29. Plaintiff Laura Elizabeth Bell ("Plaintiff" or "Bell") is a resident of the Commonwealth of Pennsylvania, living in Pittsburgh, who was employed by Defendants as a bartender, at the Southern Tier Brewing Company Taproom located at 316 N. Shore Drive, in Pittsburgh, Pennsylvania. While employed as a Tipped Employee, Defendant failed to compensate Plaintiff properly for all hours worked.

Pursuant to Section 216(b) of the FLSA, Plaintiff has consented in writing to be a plaintiff in this action. Her consent is attached hereto as Exhibit B.

30. Pursuant to Section 216(b) of the FLSA, Plaintiff has consented in writing to be a plaintiff in this action. Her consent is attached hereto as Exhibit B.

31. Defendant Craft Revolution, LLC d/b/a Artisanal Brewing Ventures ("Craft Revolution") is a Delaware corporation that maintains its principal place of business at 4001 Yancey Road, Charlotte, North Carolina. In its annual report filed with the State of North Carolina, Craft Revolution describes its business as being a "parent company of breweries." Craft Revolution is listed as a Company Official ("Manager") on the annual report filed by Defendant Artisanal Brewing Ventures Charlotte, LLC. Craft Revolution was the signatory to Artisanal Brewing Ventures Charlotte, LLC's annual report filed with the State of North Carolina.

JURISDICTION AND VENUE

32. Defendant Artisanal Brewing Ventures Charlotte, LLC is headquartered at 4001 Yancey Road, Charlotte, North Carolina. According to its website, ABV was founded in 2014 and through mergers and partnerships, it "is building a portfolio of breweries and brands, including Southern Tier, Victory, Sixpoint, and Bold Rock." *See https://artbrewventures.com/about/* (last visited December 5, 2023).

33. Defendants are a single integrated enterprise with a high degree of interrelated and unified operations, sharing common labor policies including the practices complained of herein.

34. Upon information and belief, the reason Defendants maintained the separate brands was to (i) ensure continuing customer loyalty for each specific brand and (ii) to limit the liability of Defendants.

PLAINTIFF'S EXPERIENCE WORKING FOR DEFENDANTS

35. At all relevant times during the statutory period covered by this Complaint, Defendants, through their actions as an integrated enterprise, have transacted business within this District.

36. At all relevant times during the statutory period covered by this Complaint, location from in or about late August/early September 2018 through the end of July 2023.

57. Moreover, Defendants had employees from one brand provide training on that brand's beverages at the Pittsburgh Taproom.

58. As such, upon information and belief, the employment practices complained of herein occurred at all of Defendants' locations as Defendants utilized common labor policies and practices at each of its locations. Accordingly, Defendants are responsible for the employment practices complained of herein.

PLAINTIFF'S EXPERIENCE WORKING FOR DEFENDANTS

59. As set forth above, Plaintiff was employed by Defendants as a "bartender" in their Pittsburgh Taproom location in the Commonwealth of Pennsylvania. Plaintiff worked at this location from in or about late August/early September 2018 through the end of July 2023.

60. Plaintiff typically worked four to five shifts per week. She would typically arrive at 3:45pm (approximately 45 minutes before the Taproom opened to the public) and would stay until approximately 11:00 p.m. to 11:30 p.m.

61. Plaintiff's hourly wage rate from Defendants was $2.83 an hour and earned tips from customers who chose to leave a gratuity. Plaintiff does not ever recall the hourly wage being raised by Defendants above $2.83 for any day worked, irrespective of how little tips were earned or the type of work performed.

62. Plaintiff recorded her work time by logging into Defendants' timekeeping system through the point-of-sale ("POS") system.

63. When working as a bartender, Plaintiff placed her cash tips in a bucket she shared with the other bartender(s) working with her.

64. At the end of the night, management would collect the tip bucket and Plaintiff's drawer from her cash register and take it upstairs to perform end-of-night accounting. Management

57. Plaintiff typically worked four to five shifts per week. She would typically arrive at 3:45pm (approximately 15 minutes before the Taproom opened to the public) and would stay until approximately 11:00 p.m. to 11:30 p.m.

58. Plaintiff's hourly wage rate from Defendants was $2.83 an hour and earned tips from customers who chose to leave a gratuity. Plaintiff does not ever recall the hourly wage being raised by Defendants above $2.83 for any day worked, irrespective of how little tips were earned or the type of work performed.

59. Plaintiff recorded her work time by logging into Defendants' timekeeping system through the point-of-sale ("POS") system.

60. Typically, when Plaintiff would close the Taproom, Defendants' policy was such that managers would automatically clock her out so that management could perform their end-of-night accounting even though Plaintiff was still performing closing tasks. This also occurred at the start of her shift, as the timekeeping system would not record Plaintiff's compensable work time until 4:00 p.m., even though Plaintiff began working at 3:45 p.m.

61. Consequently, Plaintiff frequently worked off-the-clock ("OTC"). Indeed, illustrated by Exhibit D, Plaintiff was still performing closing side work tasks at 11:06 p.m., even though Defendants' timekeeping system had Plaintiff clocked out at 10:30 p.m.

THE TIP CREDIT PROVISION & REQUIREMENTS

FLSA Requirements

22. Rather than pay its Tipped Employees the applicable minimum wage (either the applicable state minimum wage or the federal minimum wage, whichever is higher), Defendants chose to take a tip credit and pay these employees less than the applicable minimum wage.

121. At all relevant times, Defendants have employed, and/or continue to employ, Plaintiff and each of the Collective Class Members within the meaning of the FLSA.

122. Pursuant to their compensation policies, Defendants took a tip credit and paid Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

123. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 *et seq.* The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29 U.S.C. § 255(a).

124. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class, are entitled to recover from the Defendants, compensation for unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

125. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates by reference the paragraphs above as if they were set forth again herein.

126. As set forth above, Defendants failed to comply with the FLSA, its applicable regulations (including 29 C.F.R. § 531.56(e)), and DOL guidance (including the Department of Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation over the course of their regular workweek, while paying said employees at the sub-minimum wage, tip credit rate.

127. Examples of such non-tipped labor unrelated to the primary duties of Tipped Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets, rolling

23. Under applicable law, in certain circumstances, it is permissible for an employer to take a tip credit and pay its employees less than the mandated minimum wage, provided that the employee's tips received from customers plus the cash wage paid by the employer equals at least the applicable minimum wage.

FIRST CLAIM FOR RELIEF

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

24. Plaintiff, on behalf of herself and the Collective Class, realleges and incorporates by reference the paragraphs above as if they were set forth again herein.

25. At all relevant times, Defendants have had gross revenues in excess of $500,000.

26. At all relevant times, Defendants have been and continue to be, an employer engaged in interstate commerce, within the meaning of the FLSA, 29 U.S.C. §§ 206(a) and 207(a).

27. Pursuant to their compensation policies, Defendants took a tip credit and paid Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

28. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 et seq. The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29 U.S.C. § 255(a).

29. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class, are entitled to recover from Defendants, compensation for unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

SECOND CLAIM FOR RELIEF

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

SECOND CLAIM FOR RELIEF

121. At all relevant times, Defendants have employed, and/or continue to employ, Plaintiff and each of the Collective Class Members within the meaning of the FLSA.

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

122. Pursuant to their compensation policies, Defendants took a tip credit and paid

(On Behalf of the Collective Class)

Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

30. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates

123. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 *et* by reference the paragraphs above as if they were set forth again herein.

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31. As set forth above, Defendants failed to comply with the FLSA, its applicable meaning of 29 U.S.C. § 255(a).

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124. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the members of the Collective Class, are entitled to recover from the Defendants, compensation for members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees over the course of their regular workweek, while paying said employees at the sub-minimum and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

wage, tip credit rate.

SECOND CLAIM FOR RELIEF

32. Examples of such non-tipped labor unrelated to the primary duties of Tipped

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets,

125. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates rolling silverware, and stocking inventory.

by reference the paragraphs above as if they were set forth again herein.

33. Defendants have violated, and continue to violate, the FLSA, 29 U.S.C. §§ 201 et

126. As set forth above, Defendants failed to comply with the FLSA, its applicable seq. The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the regulations (including 29 C.F.R. § 531.56(e)), and DOL guidance (including the Department of meaning of 29 U.S.C. § 255(a).

Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the

34. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation members of the Collective Class, are entitled to recover from Defendants, compensation for over the course of their regular workweek, while paying said employees at the sub-minimum wage, unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees tip credit rate.

and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

127. Examples of such non-tipped labor unrelated to the primary duties of Tipped

Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets, rolling

of the unpaid compensation as liquidated damages.

PRAYER FOR RELIEF

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WHEREFORE, Plaintiff, individually and/or on behalf of herself and all other similarly

WHEREFORE, Plaintiff, individually and/or on behalf of herself and all other similarly situated members of the Collective Class and members of the PA Class respectfully requests the

situated members of the Collective Class and members of the PA Class respectfully requests the Court grant the following relief:

Court grant the following relief:

A. Designation of this action as a collective action on behalf of the Collective Class,

A. Designation of this action as a collective action on behalf of the Collective Class, and prompt issuance of notice pursuant to 29 U.S.C. §216(b), apprising them of

and prompt issuance of notice pursuant to 29 U.S.C. §216(b), apprising them of the pendency of the pendency of this action, and permitting them to assert timely FLSA claims in

this action, and permitting them to assert timely FLSA claims in this action by filing individual this action by filing individual Consents to Sue pursuant to 29 U.S.C. §216(b);

Consents to Sue pursuant to 29 U.S.C. §216(b);

B. Designation of the action as a class action under F.R.C.P. 23 on behalf of the PA

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Class;

C. Designation of Plaintiff as representative of the Collective Class and the PA

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Class;

D. Designation of Plaintiff's counsel as class counsel for the Collective Class and the

D. Designation of Plaintiff's counsel as class counsel for the Collective Class and

PA Class;

the PA Class;

E. A declaratory judgment that the practices complained of herein are unlawful under

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the FLSA, PMWA, and WPCL;

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F. An injunction against Defendants, as provided by law, from engaging in each of

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the unlawful practices, policies and patterns set forth herein;

the unlawful practices, policies and patterns set forth herein;

G. An award of unpaid minimum wages to Plaintiff and the members of the Classes;

G. An award of unpaid minimum wages to Plaintiff and the members of the Classes;

H. An award of liquidated damages to Plaintiff and members of the Classes;

H. An award of liquidated damages to Plaintiff and members of the Classes;

I. An award of interest to Plaintiff and members of the PA Class;

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J. An award of costs and expenses of this action together with reasonable attorneys'

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and expert fees to Plaintiff and members of the Classes; and

and expert fees to Plaintiff and members of the Classes; and

K. Such other and further relief as this Court deems just and proper.

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DEMAND FOR TRIAL BY JURY

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Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Plaintiff hereby demands a trial by jury on all questions of fact raised by the complaint.

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Dated: January 8, 2024

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Respectfully submitted,

JAMES, MCELROY & DIEHL, P.A.

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Respectfully submitted,

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